



PLANNING &
DEVELOPMENT

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP - Senior Planner
Subject: PLTA-25-10 Amending UDC 5.7.3 and 1.4.4 regarding Accessory Dwelling Units
Date: January 12, 2026

Background

The item for consideration is a UDC Text Amendment. The substance of this amendment was initiated by Councilman Mark Moody, but the language was crafted by Staff and modified by the Planning Commission. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 1/12/2026
- Public Services Committee 1/20/2026
- Second reading 1/26/2026
- Public Services Committee 2/2/2026
- Third and final reading 2/9/2026

Planning Commission Recommendation

The Planning Commission heard this item at their January 5, 2026 meeting and voted 5-0 to recommend the Governing Body approve the proposed text amendment with the following change:

- 1.4.4.a "Accessory Dwelling" changed to clarify the list of ADU options were examples, not an exhaustive list.

Planning Commission's proposed changes are reflected in the attached ordinance.

The Planning Commission Staff report is attached and has not been changed (Except that areas changed by the Planning Commission have been noted in green to attempt to reduce confusion when comparing the Planning Commission Staff Report to the Ordinance).

Public Comment

As of the creation of this memo (January 7, 2026), Staff has received multiple comments from the public on this project in the form of letters (attached). The project page on the website has received 91 views and no comments.

Attachments:

1. Ordinance
2. Planning Commission Staff Report
3. Letters from various entities:
 - a. Habitat for Humanity of Laramie County
 - b. Affordable Housing Task Force
 - c. Laramie County Community Partnership
 - d. Southeast Wyoming Builders Association

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING 5.7.3 ACCESSORY DWELLING UNITS OF THE CHEYENNE UNIFIED DEVELOPMENT CODE TO REMOVE OWNER-OCCUPANCY AND ADJUST PARKING REQUIREMENTS FOR ACCESSORY DWELLINGS, AND MAKING CONFORMING AMENDMENTS TO THE DEFINITIONS OF AN ACCESSORY DWELLING AND SEMI-ATTACHED DWELLING UNDER 1.4.4 DESCRIPTIONS OF USES OF LAND AND BUILDINGS.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the Governing Body of the City of Cheyenne finds that the text amendment to the Cheyenne Unified Development Code (UDC) that is the subject of this ordinance meets the review criteria specified in Section 2.4.1.d of the UDC.

Section 2. That on January 5, 2025, the Planning Commission conducted a public hearing, reviewed the proposed text amendment, and recommended approval of said text amendment.

Section 3. That 5.7.3 Accessory Dwelling Units, of 5.7 Specific Use Standards, of Article 5 Zoning Regulations, of the Cheyenne Unified Development Code is hereby amended to read:

5.7.3 Accessory Dwelling Units

In districts where accessory dwelling units are allowed as permitted, administrative or conditional uses, they shall meet the following standards in addition to all other lot and building standards for the district.

- a. The accessory dwelling unit may be in the principal building or any permitted accessory building, however all applicable lot and building type standards for the district shall apply.
- b. Only one accessory dwelling unit is permitted per detached one-unit dwelling lot in any zoning district where accessory dwellings are allowed as permitted, administrative or conditional uses. Accessory dwelling units are prohibited on lots with multi-dwelling buildings, attached dwellings or semi-attached dwellings.
- ~~c. The property owner must occupy either the principal unit or the accessory dwelling unit as their permanent residence.~~
- ~~dc.~~ After approval by the ~~Development Office~~ Director of an accessory dwelling unit pursuant to subsection (b) of this section, the property owner will record with the Laramie County real estate office a “Notice of ADU Regulations” that shall contain a legal description of the subject property. The “Notice of ADU Regulations” shall be in a form approved by the ~~Development Office~~ Director prior to filling.
- ~~ed.~~ In no case shall an accessory dwelling unit be more than 40 percent of the principal dwelling unit up to a maximum of 1,200 square feet. This limitation is in addition to all other lot and

building standards applicable in the district. Square footage calculations, as contained herein, exclude any related garage, porch, or similar area.

- ~~fe.~~ The unit size limitations shall not apply to basement apartments. The size of a basement apartment may occupy the entire floor area of the existing basement.
- ~~gf.~~ The accessory dwelling unit shall not include any design elements on principal or accessory buildings that alter the character of the lot, building type or district in general.
- ~~hg.~~ An accessory building used for an Accessory Dwelling Unit shall be designed to preserve or complement the architectural design, style and appearance of the principal building.
- ~~ih.~~ One ~~off-street~~ parking space shall be provided in addition to that which is required for the principal dwelling, ~~and it shall be located on a discrete portion of the lot.~~

Section 4. That 1.4.4 Descriptions of Uses of Land and Buildings, of 1.4 Interpretation, of Article 1 General Provisions, of the Cheyenne Unified Development Code is hereby amended, with the entire text of the section, as amended, set forth in full in Attachment A pursuant to Wyo. Stat. § 15-1-117, which attachment is incorporated herein by this reference and shall control in the event of any inconsistency. The amendments adopted by Attachment A are limited to the following residential use definitions:

Semi-attached Dwelling ("Duplex"). A Residential use in a detached building designed as ~~two principal dwelling units. It may be designed as~~ a "paired house," matching the appearance of a house, ~~or it may be designed as a "flat-over-flat," matching the appearance of a small apartment building or townhouse.~~ A duplex ~~is~~ may be situated on its own fee simple lot, but each unit of a side-by-side paired house ~~may shall meet all requirements to~~ be platted on ~~an~~ two individual ~~lot if party walls are used~~ lots. Two units in the same building in the form of "flat-over-flat" duplex shall be considered an Accessory Dwelling, not a Semi-attached Dwelling.

Accessory Dwelling. A separate dwelling unit that is associated with, incidental to, and subordinate to another dwelling unit as the principal use, and ~~is~~ located on the same lot as the principal dwelling (commonly referred to as ~~"In-laws Quarters"~~ "Basement Apartment" or "Garage Apartment"). The Accessory Dwelling may take forms such as a stand-alone unit in an accessory building, a small unit added onto the principal building, or a "flat-over-flat" duplex.

Section 5. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 6. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

ATTACHMENT A

Amended Section 1.4.4

Descriptions of Uses of Land and Buildings

Cheyenne Unified Development Code

Section 4. That 1.4.4 Descriptions of Uses of Land and Buildings, of 1.4 Interpretation, of Article 1 General Provisions, of the Cheyenne Unified Development Code is hereby amended to read:

1.4.4 Descriptions of Uses of Land and Buildings

This section contains general descriptions associated with the uses of land and buildings. It is organized according to categories of uses and specific types of uses within each category. These categories and types correspond to the Use Table in Article 5, Zoning Regulations. Where a use appears to meet two or more descriptions or where a use is not described, the Director shall make a determination. If a use meets all of the characteristics of a use category and use type, or is so similar to a described use type as to create no anticipated differential impact, the Director may interpret that the described use includes the additional use. In making this determination, the Director shall compare: (a) the intensity and scale of the use relative to the site; (b) the typical site and building designs associated with the use; (c) the functional or operational characteristics and the potential impacts of the use on adjacent property; and (d) the potential contribution of the use to the overall character of the district or districts in which the comparable use is allowed. All other uses which cannot be interpreted in this manner are different from the described uses, are not anticipated by these regulations, and may only be allowed by a zoning text amendment.

- a. ***Residential Uses.*** The Residential use category is for all types of dwelling units used for permanent residence, including a variety of lot types, building types, and unit types, that may vary in the kind and classes of buildings based on the character of the neighborhood.

Attached Dwelling (“Townhouse”/”Rowhouse”). A Residential use in a building designed with a series of attached principal dwelling units separated by a single common wall. Each unit is typically situated on its own fee simple lot where party walls are used, but buildings or grounds may be owned in common. Each unit has the same orientation and front facade, and has its own private entrance to the exterior of the structure.

Detached Dwelling. A Residential use in a detached building designed as a single principal dwelling unit and situated on its own fee simple lot.

Semi-attached Dwelling (“Duplex”). A Residential use in a detached building designed as ~~two principal dwelling units. It may be designed as a~~ “paired house,” matching the appearance of a house, ~~or it may be designed as a “flat-over-flat,” matching the appearance of a small apartment building or townhouse.~~ A duplex ~~is~~ may be situated on its own fee simple lot, but each unit of a side-by-side paired house ~~may~~ shall meet all requirements to be platted on an two individual lot if party walls are used lots. Two units in the same building in the form of a “flat-over-flat” duplex shall be considered an Accessory Dwelling, not a Semi-attached Dwelling.

Cottage Lot. A Residential use utilizing detached dwellings, semi-attached dwellings, or attached dwellings designed to face a common area (typically open space) with other shared facilities (such as shared public street access, shared parking, shared trash collection, etc.). Individual dwelling units may be on fee simple lots, a condominium, or on one larger ownership parcel. A cottage lot is also known as “bungalow court” or “cottage court”. Cottage lots are subject to the provisions of UDC Section 6.6.5.

Group Housing. A residential use, Group Housing is the provision of in-home, 24-hour, 7-days a week custodial care for from 1 to 6 individuals living together as a single housekeeping unit in a single-family, detached dwelling unit. This maximum number excludes staff. This use does not include a household where custodial care is provided by a family member to from 1 to 6 persons in a single-family, detached dwelling unit. Custodial care includes the provision of in-home personal assistance, housekeeping service, supervision, and limited medical assistance to a resident or residents. Examples of Group Housing include, but are not limited to, homes for elders and disabled or mobility-impaired persons, homes for rehabilitation from drugs or alcohol addiction, or homes for formerly incarcerated persons. The Group Housing use is subject to the provisions of Section 5.7.5.d and e of the UDC.

Dormitories. A Residential use in a building that provides sleeping accommodations for a number of people.

Multi-dwelling Building (“Apartment”). A Residential use in a building designed for more than two principal dwelling units and situated on a single fee simple lot. This building type includes a variety of variations based on the permitted building scale, including “stacked flats” (3-story/tri-plex), “six-plex” (paired stacked flats), or larger apartment buildings.

Live/Work. A primarily residential use in a building designed for two principal uses, where a portion is designed for residential dwelling use, and a portion is designed for a limited non-residential use to support the occupation or vocation of the resident of the dwelling unit. The non-residential portion is limited to the 1st story and less than 50% of the total floor area of the building. The building is situated on its own fee simple lot but may be attached or detached based on zoning district standards and context.

Mixed-use Dwelling. A Residential use in a building designed for a mix of uses with office or retail on the 1st story / street-front and residential uses on the upper stories where the dwelling units are not accessory to the non-residential uses. Mixed-use buildings may be either small- or large-scale, with larger scale buildings, depending on the context and zoning district standards, and typically being broken into multiple fee simple lots with party walls, but the dwelling units may be owned in fee simple, as condominiums, or apartments.

Accessory Dwelling. A separate dwelling unit that is associated with, incidental to, and subordinate to another dwelling unit as the principal use, and ~~is~~ located on the same lot as the principal dwelling (commonly referred to as ~~“In-laws Quarters”~~ “Basement Apartment” or “Garage Apartment”). The Accessory Dwelling may take forms such as a stand-alone unit in an accessory building, a small unit added onto the principal building, or a “flat-over-flat” duplex.

Urban Loft Building. A residential use in a building designed for more than two principal dwelling units and situated on a single fee simple lot. This building type contemplates a taller multifamily building, often with parking structured or at grade with the building above, located in a walkable, mixed use context.

Manufactured housing parks. An area of land under one fee ownership, where designated spaces for manufactured home are rented for use as a principal dwelling unit, and which may provide associated facilities for common use.

- b. **Civic Uses.** The Civic use category includes uses serving a broad and general public and community interest to enhance daily cultural, social or recreation opportunities for area landowners and residents. This category is based on the need of different kinds and classes of buildings in close proximity with other uses, which can be integrated in to these areas with the appropriate level of civic design. The Civic use category may contain uses that are either public and accessible to all citizens; common and accessible by rights associated with ownership; or private and accessible by membership or general association.

Neighborhood Assembly (<350 maximum occupancy). A Civic use that conducts organized services, assemblies, or programs on a periodic or occasional basis, primarily for the convenience, entertainment, education, and social or spiritual welfare of nearby residents. Neighborhood Assemblies typically have buildings and supporting facilities designed for a capacity of no more than 350 people for any one event. Common examples include meeting halls, neighborhood association club houses, or smaller neighborhood churches.

Community Assembly (350 -1000 maximum occupancy). A Civic use that conducts organized services, assemblies, or programs on a periodic or occasional basis, primarily for the convenience, entertainment, education, and social or spiritual welfare for citizens in the general vicinity. Community Assemblies typically have buildings and supporting facilities designed for a capacity of no more than 1000 people for any one event. Common examples include community centers, museum, or large churches. [For larger assemblies see Entertainment, Venue].

Cemeteries. A Civic use where land is used for the burial of the deceased, both human and animals, and dedicated for internment purposes, including columbaria, crematoria, mausoleums and mortuaries when operated in conjunction with and within the boundary of such cemetery.

Primary and Secondary Schools. A Civic use where buildings and facilities are used for the education and instruction of K through 12 students.

Educational Facilities. A Civic use where buildings and facilities are used for the education and instruction of post-secondary students, non-traditional students, or continuing education for adult or general population.

Community Athletic Field. A noncommercial facility for active outdoor recreation and organized sports, including a facility which is an accessory use to a school, but excluding any facility with lighted fields or permanent buildings for refreshment stands, locker rooms or shower facilities.

Developed Athletic Field or Stadium. A facility for active outdoor recreation and organized sports which includes lighted fields, permanent grandstands, or permanent buildings for refreshment stands, locker rooms or shower facilities.

- c. ***Service Uses.*** The Service use category is for businesses engaged in the exchange of professional skills, advice, personal care or other resources, and the nature of the exchange

generally requires frequent interactions with the clients, customers or patrons on the premises, and where lots or buildings may require access or exposure to the public-at-large.

Service Business – Limited. A Service use that primarily supports adjacent residential uses by providing daily services for the convenience of residents, and involving less than 3,000 square feet of gross leasable area. Examples include post office, bank outlet, barber shop or beauty salon, tailor, or other similar services.

Service Business – General. A Service use that provides support for adjacent residential uses or businesses which may involve more than 3,000 square feet of gross leasable area. Examples include copy centers, large banks, or any other similar services that exceed the scale of Service Business – Limited.

Assisted Living Facility / Nursing Home. A Service use / institutional occupancy providing residential accommodations for 7 or more persons to meet the needs of the aging, semi-dependent or dependent population in a residential environment, together with recreation and support services and facilities for the benefit of the residents and where any permanent on-site staff is accessory to the primarily residential use. On-site skilled nursing care or medical facilities may be provided. An Assisted Living Facility/Nursing Home use is subject to the provisions of Section 5.7.5 of the UDC. An Assisted Living facility/Nursing Home use, pursuant to this definition, does not include a Group Housing use or site. An Assisted Living Facility/Nursing Home operation may take place within a residential or a non-residential structure.

Animal Care, Kennel. A Service use where domestic animals are boarded, bred or sold as a primary business. *Animal Care, Hospital / Clinic.* A Service use where animals are admitted for examination, treatment, or health care by a doctor of veterinary medicine, which may include kennels, runs or other accessory accommodations.

Family Child Care Home (FCCH). A Service use where preschool care and education is provided for up to 10 children within the owner's primary residence. The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.

Family Child Care Center (FCCC). A Service use where preschool care and education is provided for up to 15 children within the owner's primary residence. The owner's infants, toddler and/or children ages three (3) to five (5) shall count toward the capacity.

Child Care Center (CCC). A Service use where preschool care and education is provided for children on a regular basis not located in any person's residence.

Emergency Shelter. A facility, which provides shelter or overnight accommodations and incidental support services for persons experiencing homelessness and/or families on a short-term basis.

Entertainment, Indoor Recreation Facility. A Service use where facilities for indoor sports, entertainment, or similar recreation opportunities for participants and spectators are offered. Examples of uses include bowling alleys, pool halls, roller skating rinks, swimming pools, movie theaters, video or similar gaming venues, racquetball courts, or fitness clubs.

Entertainment, Outdoor Recreation Facility. A Service use where facilities for outdoor sports, entertainment, or similar recreation opportunities for participants and spectators are offered. Examples include racetracks, driving ranges, music performance venues, or other outdoor entertainment venues.

Entertainment, Venue. A Service use where music concerts, floor shows or other forms of entertainment, performances or presentations by persons are provided indoors for guests or the general public, which may include accessory dining, bar, and similar refreshment services. Examples include concert halls, theatrical performance art centers, dinner theaters, other food or beverage-serving establishments providing live entertainment venues, banquet halls, or auditoriums.

Entertainment, Amusement, Recreation Services—Other. A Service use primarily engaged in the operation of indoor or outdoor entertainment, amusement and recreation services not elsewhere classified, such as off-track betting, indoor or outdoor shooting range, amusement parks, or similar sports or recreation venues.

Lodging, Bed and Breakfast. A Service use where up to six guest rooms are rented, generally for short-term occupancy for sleeping, together with limited facilities for the accommodations of guests in a home-like atmosphere.

Lodging, Hotel or Motel. A Service use where six or more guest rooms are rented, generally for short-term occupancy for sleeping, together with incidental meeting rooms, restaurants and recreation facilities for the primary benefit of the guests.

Medical Care, Clinic. A Service use where physicians, dentists, or other health care professionals are associated for the purpose of carrying on their professions. A health clinic

may include a dental or medical laboratory, after hours emergency care, but it may not include in-patient care or operating rooms for major surgery.

Medical Care, Office. A Service use where physicians, dentists, or other health care professionals carrying on their professions. A medical office may include a dental or medical laboratory, but may not include in-patient care or operating rooms for major surgery and may not be open for after-hours emergency care.

Medical Care, Hospital. A Service use providing health services, primarily for inpatients, and medical or surgical care of the sick or injured, including as an integral part of the institution such related facilities as laboratories, outpatient departments, training facilities, central service facilities and staff offices.

Mini Storage. A Service use where a building or group of buildings in a controlled-access and fenced compound that contains varying sizes(s) of individual, compartmentalized and controlled-access stalls or lockers for the storage of a customer's goods or wares. Mini Storage may include individual units accessed from inside of a building offered for rent or lease for the storage of personal property. It may also include parking areas for the storage of vehicles, trailers, recreational vehicles, boats, snow mobiles and other similar items as an accessory use. Outdoor storage, or the storage of junk, explosives, or flammable materials and other noxious or dangerous materials are specifically prohibited.

Storage, Yard. A Service use where exterior yards are leased for the outdoor storage of large-item personal property such as boats or recreational vehicles.

- d. ***Employment Uses.*** The Employment use category is for businesses engaged in administrative, clerical, and professional operations and support, where products or services are of the nature that generally, when compared to Retail Use Types, do not require daily on-premise interactions with the clients, customers or patrons, and where lots and buildings are not primarily designed to maximize exposure to the public-at-large.

Home Occupation. A business which is carried on entirely within a legal or legal non-conforming dwelling or allowed accessory building, and which is clearly incidental and secondary to the use of the premises as a dwelling.

Office - Limited. An Employment use which is not an accessory to another use, but limited individual units of gross leasable area are less than 3,500 square feet, and where each owner or tenant typically employs less than 20 employees on premises. Examples include small-scale professional service offices such as accountants, architects, insurance, law, real estate,

or other similar businesses which can operate within the unit square footage and employee limits of this category.

Office - General. An Employment use where individual units of gross leasable area are between 3,500 and 20,000 square feet, and where each owner or tenant typically employs between 20 and 100 employees on premises. Examples include large professional service offices such as accountants, architects, insurance, law, real estate, or other similar businesses which exceed the Office - Limited category, or other moderate size business or corporate employment operations.

Major Office or Office Complex. An Employment use where individual units of gross leasable area may be more than 20,000 square feet in a single building or group of buildings, and each owner or tenant may typically employ more than 100 employees on premises. Examples include major professional service firms or large corporate offices.

e. ***Commercial Uses.*** The Commercial use category is for businesses engaged in the exchange of merchandise for general consumers, and nature of the exchange generally requires frequent interactions with the clients, customers or patrons on the premises, where lots or buildings are primarily designed for exposure to the public-at-large.

Convenience Retail / Corner Store (<2k). A Commercial use primarily engaged in the small-scale sale of household merchandise and general consumer products and involving less than 2,000 square feet of gross leasable area. Convenience Retail / Corner Store uses are characterized by target market areas of less than 1/4 mile radius for most of its on-premise sales or are associated accessory to an employment or service business.

Neighborhood Retail (<5K). A Commercial use primarily engaged in the small-scale sale of household merchandise and general consumer products and involving less than 5,000 square feet of gross leasable area. Neighborhood retail uses are characterized by a target market area of less than 1/2 mile radius for most of its on premise sales.

General Retail (5K - 25K). A Commercial use primarily engaged in the sale of household merchandise, specialty merchandise, and consumer products and involving between 5,000 and 25,000 square feet of gross leasable area. General Retail uses are characterized by a target market area of less than 1 mile radius for most of its on-premise sales.

Large-scale Retail (25K - 100K). A Commercial use primarily engaged in the sale of household merchandise, specialty merchandise or general consumer products and involving between 25,000 and 100,000 square feet of gross leasable area. Large-scale

Retail uses are characterized by a target market area that may be greater than 1 mile radius for the on-premise component of its sales.

Warehouse Retail (> 100K). A Commercial use primarily engaged in the sale of household merchandise, specialty products, general consumer products, or wholesale products and involving greater than 100,000 square feet of gross leasable area. Warehouse Retail uses are characterized by a target market area that may be more than 1 mile radius for most of its sales.

Grocery Store (<45K). A Commercial use engaged in the retail sale of a broad range of food products and limited household products for consumption off premises, although some limited areas may be dedicated to the on-premise sale and consumption of food. A grocery store involves less than 45,000 square feet of gross leasable area and is characterized by a target market of less than 1-mile radius.

Supermarket (> 45K). A Commercial use engaged in the retail sale of a broad range of food and household products for consumption off premises, although some limited areas may be dedicated to the on-premise sale and consumption of food. A supermarket typically involves more than 45,000 square feet of gross leasable area and is characterized by a target market of greater than 1-mile radius.

Outdoor Sales, Limited. The limited display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use. This display is further limited by the following: (1) it only occurs during regular business hours and is brought indoors; (2) is limited in extent to less than 10% of the entire merchandise area of the Commercial use; and (3) it is limited to seasonal sales or events lasting no longer than one-week at a time with at least 4 weeks between consecutive events.

Outdoor Sales, Seasonal. The limited display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use. This display is further limited by the following: (1) it only occurs during regular business hours and is brought indoors; (2) is limited in extent to less than 20% of the entire merchandise area of the Commercial use; and (3) it is limited to seasonal sales or events lasting no longer than one month at a time with at least 2 months between consecutive events.

Outdoor Sales, Event or Display Area. The display of merchandise on a sidewalk or an exterior private area of a site associated with an otherwise permitted Commercial use that does not meet the limitations of Limited or Seasonal Outdoor Sales, and which may require

areas to be designed and dedicated for display when part of the permanent operations of an interior retail business. Examples include lumber yards and garden centers.

Outdoor Sales. The display and sale of merchandise where the primary business is generated by merchandise displayed permanently and year round on an exterior portion of the site. Examples include automobile sales and implement sales.

Bars. A Commercial use primarily engaged in serving alcoholic beverages for consumption on-premises. Any food or entertainment services are generally secondary or accessory to the business.

Liquor Store. A Commercial use engaged primarily in the retail sale of alcoholic beverages for consumption off-premises. The sale of food or accessory beverage supplies are generally secondary or accessory to the business.

Automobile Service Repair. A Commercial use engaged in the repair, maintenance, condition, detailing, or cleaning of motor vehicles and including the accessory sales of lubricants, parts, or accessories. Services also include any modification, assembly or painting of motor vehicles and repair of internal combustion engines.

Automobile Service Station – Limited. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services. This use is limited to no more than 2 fuel pump islands and no more than 8 fueling stations.

Automobile Service Station – General. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services, or accessory Convenience Retail. This use is limited to no more than 4 fuel pump islands and no more than 16 fueling stations.

Automobile Service Station – Large-scale. A Commercial use engaged in the retail sale of fuel, and may include accessory sales of lubricants, accessories, repair services, or maintenance services, or accessory Convenience Retail. This use may have more than 4 fuel pump islands and more than 16 fueling stations.

Food Service – Limited (< 2K). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on-site and including less than 2,000 square feet of seating area.

Food Service – General (2K – 4K). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on-site and including between 2,000 and 4,000 square feet of seating area.

Food Service – Large-scale (> 4k). Any Commercial use engaged in the preparation and retail sale of food and beverages for consumption on site and including more than 4,000 square feet of seating area.

- f. ***Industrial Use Category.*** The Industrial use category is for businesses engaged in manufacturing, fabrication, warehousing, processing, wholesale or disposal of goods, products and component parts, and services related to these businesses. These uses typically belong in a special district due to their inability to blend with the uses from other use categories, except when occurring at the smallest scale.

Data Center. A use consisting of buildings or structures specifically designed or modified to house networked computers and data and transaction processing equipment and related infrastructure support equipment, including power and cooling equipment. A data center may be used to provide data and transaction processing services, outsource information technology services and/or computer equipment colocation services. A data center may also include buildings or structures that support the operation of the data center including retrofit buildings, warehousing for logistics, independent network buildings, buildings for support staff, and emergency generators. A Data Center shall not include activities which consistently produce noise discernable at the property line. Should a Data Center produce noise discernable at the property line, it shall be classified as an Industrial use.

Limited Industrial. An Industrial use where small-scale activities produce no byproducts such as smoke, odor, dust or noise discernable from the outside of the building in which it is located. Individual facilities typically occupy less than 10,000 square feet of gross leasable area and distribution and deliveries are commonly made by general consumer delivery services, requiring no significant truck access. A retail, showroom, or service component is often associated with the use. Examples include artist studios, metal and wood shops, arts and crafts manufacturing, small appliance or machine repairs, or other small-scale assembly of finished parts or products from previously prepared materials.

Moderate Industrial. An Industrial use where byproducts such as smoke, odor, dust or noise are not discernable from outside of the building in which it is located. Distribution and deliveries can occur from general consumer delivery services or limited commercial truck access. Examples include research labs or facilities, small electronics or computer assembly and manufacturing, furniture assembly.

General Industrial. An Industrial use where byproducts such as smoke, odor, dust or noise are not discernable from beyond the property boundary. Operations may require commercial vehicle access for distribution and deliveries. Examples include non-animal food processing, commercial warehouses or wholesale distribution centers or energy industry services.

Industrial. An Industrial use capable of producing significant byproducts discernable from outside the building and property including noise, odors, or other potentially offensive materials. Operations may require substantial commercial vehicle access for distribution and deliveries. Examples include food-processing involving animals (large-scale), metal or chemical manufacturing, and data centers which consistently produce noise discernable at the property line.

Limited Outdoor Storage. A use where less than 50% of the lot is used to store equipment and other materials customarily used in the operations associated with the principal use of the property in an unenclosed area.

Outdoor Storage. A use not classified as Limited Outdoor Storage where property is used to store equipment, vehicles, or other materials in an unenclosed area.

Impoundment Yards. An industrial use where a government agency establishes and operates a fenced yard or enclosed area where storage of vehicles seized by, and in the custody of, the government agency, are stored for retrieval by the vehicle owner or are sold by proper means by the agency.

Salvage Yards. An Industrial use where materials are extracted from unusable equipment, structures, or vehicles and stored for future use or resale.

Junk Yards. An Industrial use where waste or used material are bought, sold, exchanged, stored or processed for disposal.

Pet Crematory. An Industrial use where land and buildings are used for the preparation and processing of deceased domestic animals.

Air Cargo Terminals. An Industrial use where land and buildings are used for the storage of airplanes, airplane cargo or other facilities associated with air transportation or air shipping.

Aircraft Sales, Repair, Service, Storage. An Industrial use where land and buildings are used for keeping inventory related to aircraft sales or for the storage and maintenance of aircraft.

Railroad Yards and Maintenance Buildings. An Industrial use where land and buildings are used for the storage of rail cars, rail cargo or other facilities associated with rail transportation or rail shipping.

- g. ***Public Service Uses.*** The Public Service use category is for businesses or government entities engaged providing technical and operational services that serve the general public and community interest to enhance general health, safety, welfare and convenience for landowners and residents, and that serve interests beyond the specific site or facility. This category is based on the need of different kinds and classes of buildings in close proximity with other uses, which can be buffered from the adjacent areas they serve with the appropriate site design, or alternatively which can be located in special purpose districts and still serve the public interest.

Commercial or Public Parking Facility. A Public Service use where land and buildings are used for hourly or daily parking of passenger vehicles that serves other uses, sites and buildings in the vicinity. The parking services may be owned by the government or owned and operated as a business.

Government Facility. A facility or area of land controlled and/or operated by a government entity to aid in providing a service to the citizens under the jurisdiction of that entity.

Military. A Public Service use where land and buildings are used for operations of the United States Armed Forces.

Recycling Services. A Public Service use where land and buildings are used for the public drop-off, storage, and packaging of recyclable materials. Processing may occur on site, or materials may be shipped to other industrial sites for further processing.

Transportation Facilities. A Public Service use engaged in the business of offering transportation services to the public, such as airport terminals, bus stations, train stations, taxi stations, parking garages, bicycle depots or similar facilities for common storage personal vehicles or common boarding of public vehicles.

Utility Stations. A Public Service use where land is used for the concentrated location of fixed equipment necessary to serve adjacent areas with utility service, including other accessory buildings and facilities essential to the operation of the equipment.

- h. ***Agriculture Uses.*** The Agriculture use category is for uses that are commonly associated with an agrarian or rustic lifestyle, and which demand little or no public infrastructure or services.

General Agriculture. The production of grain, animals, food and fiber; the science and art of farming and ranching; and the work of cultivating the soil, producing crops and raising livestock. General Agriculture specifically excludes concentrated feeding operations where swine are confined, fed and maintained for 45 consecutive days or more in any 12-month period.

Limited Agriculture. The production of grain, animals, food and fiber on a small scale where any impacts on potential adjacent property from storage, operations, and equipment can be internalized into the site or buffered from abutting areas, typically not occurring on lots or parcels larger than 10 acres.

Agricultural Equipment and Supply. An Agriculture use where the land and buildings are used for retail sales of equipment and materials used for agricultural-related land uses, and accessory servicing of agriculture equipment.

Agriculture Product Sales / Farmers Market. An Agriculture use where land and buildings are used for the retail sale of agricultural products and operated without any additional or permanent site facilities than are otherwise associated with agriculture use. Road side stands, truck sales, or barn sales are examples of such uses, however the intensity and frequency of such sales shall be so that no additional parking, roads, structures, warehouses, or other storage facilities are necessary on the site.

Arenas and Show Barns. An Agriculture use where the land and buildings are used for show or sale of livestock, and where the public can attend these and other related activities.

Commercial Stables. An Agriculture use where land and buildings are used for the business of boarding horses, donkeys, mules, burros, llamas or other similar equine animals.

Nurseries, Landscaping. An Agriculture use to grow plants of any kind for transplanting to another location or for sale as live plants rather than as crops, including the sale of related equipment and supplies.



CITY OF
CHEYENNE
— PLANNING & —
DEVELOPMENT —

CITY OF CHEYENNE PLANNING COMMISSION
JANUARY 5, 2026
STAFF REPORT

REQUEST: A Text Amendment amending the Unified Development Code (UDC)
5.7.3 Accessory Dwelling Units with conforming amendments to UDC
1.4.4 Descriptions of Uses of Land and Buildings

CASE NUMBER: PLTA-25-10

PURPOSE: To allow ADUs without required owner occupancy and with more
parking flexibility. Also to clarify associated definitions.

PREPARED BY: Seth Lloyd, AICP, Senior Planner, Planning and Development

RECOMMENDED MOTION:

Move to recommend the Governing Body approve text amendments to the Unified Development Code 5.7.3 Accessory Dwelling Units and 1.4.4 Descriptions of Uses of Land and Buildings as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.

BACKGROUND:

The City's Unified Development Code (UDC) was adopted by the Governing Body on January 23, 2012, by Ordinance Number 3943 with an effective date of April 30, 2012. The Unified Development Code is the regulatory document carrying out the vision of PlanCheyenne and is reviewed annually pursuant to UDC 1.1.7 [Annual Review Requirement] to determine if any particular standard or regulation is timely, relevant and adequately addresses current market conditions. In addition to the annual review, the City Council, Planning and Development Director, and City Engineer are authorized under UDC 2.4.1.b to bring forward text amendments on their own initiative.

The proposed text amendments are to the accessory dwelling unit (ADU) portion of the UDC. ADUs are currently allowed via administrative use approval in any zone district where single-family homes are permitted. Any ADU application must meet the standards in UDC 5.7.3, which include requirements such as what lots they are allowed on, size, design, parking, and a requirement for owner-occupancy.

The City receives an average of about 3 ADU applications a year under current code requirements. City Staff does receive many inquiries a year about adding a second unit on a single-family home property, but if the proposed result will not be owner-occupied, the property must meet the standards for a Semi-attached Dwelling. In the definitions section of the UDC, a flat-over-flat duplex is clearly considered a possible option for a Semi-attached Dwelling, but the standards for Semi-attached Dwelling lot types in UDC 5.1.5 only really appropriately address side-by-side duplexes. Semi-attached Dwellings are allowed as a permitted use in all zones that allow Accessory Dwellings except AG, AR, and RR.

The recommendations of various housing proponents encourage the allowance of ADUs on all single-family properties (which Cheyenne already does), and also recommends not requiring off-street parking or owner occupancy to establish ADUs (which Cheyenne does not). Part of the housing legislation in Montana requires larger communities to allow ADUs and does not allow those communities to restrict ADUs to owner occupancy or to require parking.

While Cheyenne Staff has long been aware of issues surrounding ADUs in the community, proposing formal changes to the UDC was low on Staff's priority list. However, due to the prior research and discussion on ADUs in Cheyenne, when a City Council member requested Staff move forward changes to ADU regulations, Staff was ready to discuss and bring forward formal amendments.

Under the current zoning code (where owner-occupancy is required) the Chief Building official has been lenient on ADUs, considering them 'separate kitchens in one dwelling' as opposed to 'two dwellings'. The Building code gives more latitude to home owners working on their own homes, and such an interpretation is in line with that latitude.

PROPOSED AMENDMENT:

The proposed amendments remove owner-occupancy requirements, give more flexibility to meeting required parking, and clarify the zoning requirements associated with flat-over-flat duplexes. A few other minor technical changes are also included.

Changes to owner occupancy and clarifying the definition of "flat-over-flat" will give more properties the ability to have ADUs. However, by removing owner-occupancy as a zoning requirement, the Building department will need to treat ADU applications as 'two units'. When Staff contacted building departments in Montana, they were informed by those officials that they treated all ADUs the same as a flat-over-flat duplexes for the purposes of compliance with building code.

Changes to parking gives more flexibility on how to meet required parking, including a third stall on a driveway, or on-street parking, where a lot has sufficient street frontage (such as a corner lot).

Specific Text of the Proposed Amendment:

5.7.3 Accessory Dwelling Units

In districts where accessory dwelling units are allowed as permitted, administrative or conditional uses, they shall meet the following standards in addition to all other lot and building standards for the district.

a. The accessory dwelling unit may be in the principal building or any permitted accessory building, however all applicable lot and building type standards for the district shall apply.

b. Only one accessory dwelling unit is permitted per detached one-unit dwelling lot in any zoning district where accessory dwellings are allowed as permitted, administrative or conditional uses. Accessory dwelling units are prohibited on lots with multi-dwelling buildings, attached dwellings or semi-attached dwellings.

~~c. The property owner must occupy either the principal unit or the accessory dwelling unit as their permanent residence.~~

~~dc.~~ After approval by the ~~Development Office~~ Director of an accessory dwelling unit pursuant to subsection (b) of this section, the property owner will record with the Laramie County real estate office a "Notice of ADU Regulations" that shall contain a legal description of the subject property. The "Notice of ADU Regulations" shall be in a form approved by the ~~Development Office~~ Director prior to filling.

ed. In no case shall an accessory dwelling unit be more than 40 percent of the principal dwelling unit up to a maximum of 1,200 square feet. This limitation is in addition to all other lot and building standards applicable in the district. Square footage calculations, as contained herein, exclude any related garage, porch, or similar area.

fe. The unit size limitations shall not apply to basement apartments. The size of a basement apartment may occupy the entire floor area of the existing basement.

gf. The accessory dwelling unit shall not include any design elements on principal or accessory buildings that alter the character of the lot, building type or district in general.

hg. An accessory building used for an Accessory Dwelling Unit shall be designed to preserve or complement the architectural design, style and appearance of the principal building.

ih. One ~~off-street~~ parking space shall be provided in addition to that which is required for the principal dwelling, ~~and it shall be located on a discrete portion of the lot.~~

1.4.4 Descriptions of Uses of Land and Buildings

...

Semi-attached Dwelling ("Duplex"). A Residential use in a detached building designed as ~~two principal dwelling units. It may be designed as~~ a "paired house," matching the appearance of a house, ~~or it may be designed as a "flat-over-flat," matching the appearance of a small apartment building or~~ townhouse. A duplex ~~is may be~~ situated on its own fee simple lot, but each unit of a side-by-side paired house ~~may shall meet all requirements to be~~ platted on ~~an~~ two individual lots ~~if party walls are used~~. Two units in the same building in the form of "flat-over-flat" duplex shall be considered an Accessory Dwelling, not a Semi-attached Dwelling.

...

Accessory Dwelling. A separate dwelling unit that is associated with, incidental to, and subordinate to another dwelling unit as the principal use, and ~~is~~ located on the same lot as the principal dwelling (commonly referred to as ~~"In-laws Quarters Basement Apartment"~~ or "Garage Apartment"). ~~The Accessory Dwelling may take the form of a stand-alone unit in an accessory building, a small unit added onto the principal building, or a "flat-over-flat" duplex.~~

Language modified by
Planning Commission

ANALYSIS OF CONFORMANCE WITH REVIEW CRITERIA:

Review of a UDC text amendment shall be measured by the following three (3) criteria of Section 2.4.1.d:

1. COMPREHENSIVE PLAN:

"The amendment is in accordance with general goals and policies of the Comprehensive Plan, or is necessary to address an emerging issue not anticipated in the Comprehensive Plan and is not inconsistent with the plan."

PlanCheyenne specifically addresses accessory dwelling units in Policy 2.5.B – this policy encourages distribution of workforce housing throughout the community, including utilizing "smaller-scale, non-traditional forms of housing, such as cottage lots and accessory dwelling units, that can be readily integrated into established neighborhoods."

PlanCheyenne also encourages mixing of housing types and sizes in a neighborhood, and accessory dwelling units are a way to add diversity of housing types and sizes to a neighborhood. Plan Cheyenne encourages housing diversity to allow for people who are in a variety of life stages to live in the same area.

However, PlanCheyenne encourages high-quality neighborhoods, the stabilization of neighborhoods, and monitoring infill development over time to ensure standards are balanced in their ability to protect desirable neighborhood characteristics while not discouraging reinvestment. Current ADU regulations require new detached ADUs to be built in a way that reflects the neighborhood character. Monitoring ADU applications to confirm ADUs are not creating an undue influence in any one neighborhood may be necessary.

When PlanCheyenne was adopted in 2014, housing pressures faced by Cheyenne were not nearly as great as they are today. Although PlanCheyenne lends plenty of support to housing choice, workforce housing, and workforce housing, the need for housing is more of an emerging issue and the text amendment is consistent with the plan.

2. STATE STATUTORY REQUIREMENTS:

The amendment is consistent with the Wyoming Statutes, and specifically the Municipal Planning and Zoning statutes. (The following Articles are all listed verbatim from Wyoming State Statute)

From ARTICLE 6 – ZONING of TITLE 15 CITIES AND TOWNS:

WY 15-1-601. Regulations; scope and purpose; uniformity within authorized districts; to follow plan; objectives.

(a) The governing body of any city or town, by ordinance, may:

(i) Regulate and restrict the:

....

(E) Location and use of buildings, structures and land for trade, industry, residence or other purposes.

Assessment: This amendment proposes modifying the Unified Development Code to change regulations regarding residences, which is authorized by state statute.

3. HEALTH, SAFETY, AND PUBLIC WELFARE:

"The amendment promotes the general health, safety and public welfare."

This amendment would promote the general health, safety and public welfare of Cheyenne. The amendment will give more flexibility to housing and clarify areas of code that may be ambiguous.

REVIEW:

Staff sent the text amendment to the City Building Office, City Fire Prevention, and the County Assessor for review. The Building Office commented on how ADU applications are treated with required owner occupancy versus how they would be treated without. Staff's discussion with building departments in other communities has shown that the Cheyenne Building Office's proposed interpretation would be consistent with national trends and standards. The City Fire Prevention Office concurred with the Building Office. The County Assessor acknowledged the potential change to process and will make appropriate adjustments if the changes pass.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

Staff reviewed prior ADU applications for any trends in builders who make ADUs, and found no trend – each ADU was a unique project. As far as Staff can tell, there are no ‘ADU specialist’ builders. Staff has discussed the potential ADU changes with general builders, and have received no negative feedback.

The public was given notice of the project in the following ways:

- Legal Notice in the Wyoming Tribune Eagle published on December 20, 2025
- Internet Posting on connect.cheyennecity.org on December 1, 2025.

As of the publication of the Staff Report (December 29, 2025), Staff has received no inquires or comments from the public on this project. The project page on the website has received 78 views and no comments. Staff reviewed prior ADU applications for any trends in builders who make ADUs, and found no trend – each ADU was a unique project. As far as Staff can tell, there are no ‘ADU specialist’ builders. Staff has discussed the potential ADU change with general builders, and have received no negative feedback.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.4.1.d.

ALTERNATIVES:

1. Recommend approval of the Text Amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Text Amendment subject to conditions or modifications.
3. Recommend denial of the Text Amendment based on findings of denial. The Planning Commission must conclude that the project does not meet at least one of the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Text Amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff’s recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

STAFF RECOMMENDATION:

Staff recommends approval of text amendments to the Unified Development Code 5.7.3 Accessory Dwelling Units and 1.4.4 Descriptions of Uses of Land and Buildings as outlined in this staff report and recommended by staff, noting the amendments meet the review criteria of UDC 2.4.1.d.

Attachment:

1. Habitat Letter of Support



Together, we build Cheyenne.

RE: ADU UDC Amendment

Cheyenne, Wyoming

Dec 19, 2025

To Whom It May Concern:

This letter is being submitted to support changes to local requirements governing owner occupancy on properties with Accessory Dwelling Units (ADUs). Habitat believes this reform advances our community's goals around housing affordability and supply.

Cheyenne and Wyoming face a significant housing shortage. According to the WCDA's 2024 Housing Needs Assessment, 20,700-38,600 units are needed statewide to meet current and future demand, and between 4,386 and 7,266 needed for Laramie County. This shortage drives up prices, squeezes families out of homeownership, and increases rent burdens for workers. Without action, these pressures will continue to displace residents and strain our local economy.

Allowing non-owner occupied properties with ADUs aligns with strategies our city has pursued to restore affordability, and also aligns with the WCDA's Statewide Housing Strategic Plan, specifically category 3 of the plan: Reduce Regulatory and Land Use Barriers to New Housing Development. These homes provide naturally affordable options for families, seniors, and workers, while making better use of existing infrastructure.

Our hope is that these changes will:

- Encourage development and permitting of ADUs.
- Expand housing choices for residents at all income levels.
- Promote sustainable development by using land more efficiently.

We urge decision-makers to adopt these reforms promptly. By legalizing non-owner occupied ADUs, Cheyenne can take another step toward closing its housing gap and preserving the character and livability of our community.

Thank you for your consideration.

Sincerely,

A handwritten signature in blue ink, appearing to read "D Dorsch", enclosed within a blue oval.

Dan Dorsch, Executive Director, Habitat for Humanity of Laramie County



Honorable Mayor Collins and Esteemed Cheyenne City Council
2101 O'Neil Ave.
Cheyenne, WY 82001

Accessory Dwelling Unit (ADU) recommendation

The Mayor's Taskforce on Affordable Housing in Cheyenne has unanimously voted to support changes to local requirements governing owner occupancy on properties with Accessory Dwelling Units (ADUs). We believe this reform advances our community's goals around housing affordability and supply.

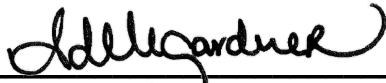
Cheyenne faces a significant housing shortage—approximately 1,400 homes, or 3% of our entire housing stock (AEI Housing Center). This shortage drives up prices, squeezes families out of homeownership, and increases rent burdens for workers. Without action, these pressures will continue to displace residents and strain our local economy.

Allowing non-owner occupied properties with ADUs aligns with strategies our city has pursued to restore affordability. According to the *Strong Foundations Playbook* produced by the US Chamber of Commerce, enabling non-owner occupied ADUs could add over 25 new ADUs annually. These homes provide naturally affordable options for families, seniors, and workers, while making better use of existing infrastructure.

Our hope is that these changes will:

- Encourage development and permitting of ADUs.
- Expand housing choices for residents at all income levels.
- Promote sustainable development by using land more efficiently.

We urge decision-makers to adopt these reforms promptly. By legalizing non-owner occupied ADUs, Cheyenne can take another step toward closing its housing gap and preserving the character and livability of our community.

A handwritten signature in black ink, appearing to read 'Adele Gardner', written over a horizontal line.

Adele Gardner
Chair, Mayor's Taskforce on Affordable Housing
Cheyenne, Wyoming

RE: ADU UDC Amendment

Cheyenne, Wyoming

Dec 17, 2025

To Whom It May Concern:

This letter is being submitted to support changes to local requirements governing owner occupancy on properties with Accessory Dwelling Units (ADUs). The Laramie County Community Partnership (LCCP) believes this reform advances our community's goals around housing affordability and supply.

Cheyenne and Wyoming face a significant housing shortage. According to the WCDA's 2024 Housing Needs Assessment, 20,700-38,600 units are needed statewide to meet current and future demand, and between 4,386 and 7,266 needed for Laramie County. This shortage drives up prices, squeezes families out of homeownership, and increases rent burdens for workers. Without action, these pressures will continue to displace residents and strain our local economy.

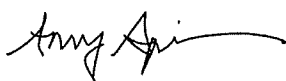
Allowing non-owner occupied properties with ADUs aligns with strategies our city has pursued to restore affordability, and also aligns with the WCDA's Statewide Housing Strategic Plan, specifically category 3 of the plan: Reduce Regulatory and Land Use Barriers to New Housing Development. These homes provide naturally affordable options for families, seniors, and workers, while making better use of existing infrastructure.

Our hope is that these changes will:

- Encourage development and permitting of ADUs.
- Expand housing choices for residents at all income levels.
- Promote sustainable development by using land more efficiently.

We urge decision-makers to adopt these reforms promptly. By legalizing non-owner occupied ADUs, Cheyenne can take another step toward closing its housing gap and preserving the character and livability of our community. Thank you for your consideration.

Sincerely,



Amy Spieker
Executive Director
Laramie County Community Partnership



Kris Whitfield
Co-Chair
Housing Action Team



Dan Dorsch
Co-Chair
Housing Action

RE: ADU UDC Amendment

Cheyenne, Wyoming

Dec 17, 2025

To Whom It May Concern:

This letter is being submitted to support changes to local requirements governing owner occupancy on properties with Accessory Dwelling Units (ADUs). The Southeast Wyoming Builders Association (SEWBA) believes this reform advances our community's goals around housing affordability and supply.

Cheyenne and Wyoming face a significant housing shortage. According to the WCDA's 2024 Housing Needs Assessment, 20,700-38,600 units are needed statewide to meet current and future demand, and between 4,386 and 7,266 needed for Laramie County. This shortage drives up prices, squeezes families out of homeownership, and increases rent burdens for workers. Without action, these pressures will continue to displace residents and strain our local economy.

Allowing non-owner occupied properties with ADUs aligns with strategies our city has pursued to restore affordability, and also aligns with the WCDA's Statewide Housing Strategic Plan, specifically category 3 of the plan: Reduce Regulatory and Land Use Barriers to New Housing Development. These homes provide naturally affordable options for families, seniors, and workers, while making better use of existing infrastructure.

Our hope is that these changes will:

- Encourage development and permitting of ADUs.
- Expand housing choices for residents at all income levels.
- Promote sustainable development by using land more efficiently.

We urge decision-makers to adopt these reforms promptly. By legalizing non-owner occupied ADUs, Cheyenne can take another step toward closing its housing gap and preserving the character and livability of our community.

Thank you for your consideration.

Sincerely,

Sam Weinstein

Sam Weinstein, President, SEWBA